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****File No.**** EXP202402267

****RESOLUTION OF****

****PROCEEDING OF WARNING****

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

****BACKGROUND****

****FIRST:**** A.A.A. (hereinafter, the complainant) on December 24, 2023, filed a complaint with the Spanish Agency for Data Protection for a possible infringement attributable to the COMMUNITY OF OWNERS B.B.B. with NIF ***NIF.1 (hereinafter, CP B.B.B.).

The facts brought to the attention of this authority are as follows:

The complainant states that on December 28, 2022, a communication was published on the notice board of the complained community of owners (from the submitted photos, it cannot be determined whether it is open or closed) containing the name, surname, and address, as well as the amount of the fees that were listed as unpaid by the complainant and where payment of the debt is requested, signed manually by the president and the secretary. This publication was carried out, as specified in the communication, due to the inability to notify reliably.

The complainant alleges that the 30-day period to withdraw the burofax dated November 25, 2022, was not respected. The burofax was withdrawn from the postal office on December 23, 2022, responding to it with another burofax dated December 28, 2022, which was received by the respondent on the 30th of that month. Furthermore, it is stated that the payment request was exposed on the notice board from December 28, 2022, to January 1, 2023.

The complainant provides photographs of the payment request, Judgment No. (...) from the Court of First Instance No. X of ***LOCALIDAD.1 declaring null the agreement of the Owners' Meeting dated October 13, 2022, which declared the complainant in arrears, and the two aforementioned burofaxes. C/ Jorge Juan, 6

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****SECOND:**** In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to CP B.B.B. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the respondent within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 24, 2024, as stated in the certificate in the file. Although the notification was made electronically, for informational purposes, a copy was sent by postal mail, which was reliably notified on March 12, 2024.

In this notification, the respondent was reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this transfer letter.

****THIRD:**** On March 24, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

****FOURTH:**** On November 20, 2024, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.f) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5.a) of the GDPR.

****FIFTH:**** The notification of the aforementioned initiation agreement, which was carried out in

accordance with the established LPACAP rules, was collected on November 20, 2024, as stated in the acknowledgment of receipt in the file.

****SIXTH:**** Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts proven in this proceeding,

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PROVEN FACTS

FIRST: On 28/12/2022, a handwritten communication signed by the secretary and the president of the homeowners' association was published on the community bulletin board, which states the name, surname, and address, as well as the amount of the fees that were listed as unpaid by the claiming party and where payment of the debt is requested.

SECOND: This publication specifies the impossibility of carrying out the required notification and payment request to the owner, as attempts made through the sending of a burofax dated 25/11/2022 were unsuccessful.

THIRD: The claiming party alleges that the 30-day period to collect the burofax dated 25/11/2022 was not respected. This burofax was collected by him from the postal office on 23/12/2022, responding to it with another burofax dated 28/12/2022, which was received by the respondent on the 30th of that month.

FOURTH: The payment request was displayed on the community bulletin board from 28/12/2022 to 01/01/2023 without having legal authorization to make this publication.

FIFTH: It provides photographs of the payment request, Judgment No. (...), from the Court of First Instance No. X of ***LOCALITY.1 declaring null the agreement of the Homeowners' Meeting dated 13/10/2022 that declared the claiming party in default, and of the two named burofaxes.

LEGAL GROUNDS

I

Jurisdiction

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

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II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to these proceedings and the concurrent circumstances, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure will have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as CP B.B.B. carries out, among other processes, the use of the following personal data of individuals, such as: name and surname and address of the community members, identification number, and economic data in relation to the homeowners' association, among other processes.

CP B.B.B. carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

“‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

IV

Obligation Breached. Principles Relating to Processing

Letter f) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

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f) treaties in such a way as to ensure adequate security of personal data, including protection against unauthorized or unlawful processing and against loss, destruction, or accidental damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

This principle assigns to CP B.B.B., as the data controller, the obligation to prevent unauthorized or unlawful processing of these data, as well as their loss or destruction.

Therefore, it should not process personal data if it is not in a position to guarantee the confidentiality and integrity of such data and to prevent a third party from accessing data that does not concern them, as well as to avoid their loss or destruction.

The data controller is obliged to process personal data in such a way as to ensure their confidentiality through the application of appropriate technical or organizational measures. For a breach of Article 5.1.f) of the GDPR to occur, there must have been a loss of confidentiality or integrity.

In this case, the principle of confidentiality in the processing of personal data has been violated. Such data, which were under the responsibility of the defendant party, were published on the notice board of the community of property owners of the building, being disseminated.

In the images provided by the claimant, there is a publication on the notice board, dated December 28, 2022, and handwritten signed by the secretary and the president of the community, where the name, surname, and address are stated, as well as the amount of the fees that were listed as unpaid by the claimant and where payment of the debt is requested. This publication specifies the impossibility of making the proper notification and payment request to the owner, having resulted in unsuccessful attempts made by sending a burofax, and that on December 28, 2022, this announcement was inserted on the visible notice board of the Community of Property Owners.

However, the claimant provides a copy of the burofax sent on December 28, 2022, to CP B.B.B., which states, "on the past day 23, I received a burofax requesting that within 15 days I proceed to pay an alleged debt I have with that community related to fees and assessments amounting to 422.40 euros, of which 352 euros correspond to fees and 70.40 euros to late interest," and a copy of judgment no. (...) from the Court of First Instance No. X of ***LOCALIDAD.1, which states, "once the alleged debt was claimed on November 23, 2022, the actor here sent a burofax to the Community of Property Owners on December 28, 2022, insisting that said debt does not exist, announcing that, in the event that it is not rectified, legal actions would be taken, thus obliging the acting party to go to court, generating the consequent expenses, which leads to appreciating the bad faith provided for in Article

395.1 of the LEC," therefore the one-month period to withdraw the burofax dated November 25, 2022, which was collected from the postal office on December 23, 2022, was not respected, and there was no legal authorization to publish the communication on the notice board of the community from December 28, 2022, to January 1, 2023.

The exposure of personal data on the community notice board must meet the requirements specified for such exposure in each case and its functions must be those of notification or citation. According to Article 21.3) of the Horizontal Property Law (LPH):

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"3. To initiate the claim through the monitoring procedure, a certificate of the debt settlement agreement issued by the person acting as secretary of the community, with the approval of the president, must be attached to the claim, unless the former is a secretary-administrator with the necessary and legally recognized professional qualification who will not intervene professionally in the judicial claim for the debt, in which case the president's signature will not be required. This certificate must specify the amount owed and its breakdown. In addition to the certificate, the initial request for the monitoring process must include the document evidencing that the debtor has been notified, which may also be done subsidiarily on the notice board or a visible place in the community for a period of at least three days. The initial request for the monitoring procedure may include the approved fees that accrue until the notification of the debt, as well as all expenses and costs incurred in the debt claim, including those arising from the intervention of the secretary-administrator, which will be borne by the debtor."

In this case, the disclosure of personal data on the aforementioned notice board does not seem to comply with the provisions set out in the LPH, and it does not appear that there is a necessity or legal authorization to expose the communication subject to the claim.

In the present case, the CP B.B.B. has violated the provisions of Article 5.1.f) of the GDPR, as there has been a lack of confidentiality in the processing of personal data, resulting from this exposure on the community notice board. The principle of confidentiality aims to prevent unauthorized leaks of personal data by the data subjects.

For the reasons stated, it is considered that the known facts constitute an infringement, attributable to CP B.B.B., for violating the previously transcribed article.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

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For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: the infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Warning

In the event of an infringement of the provisions of the GDPR, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of said Regulation includes the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;."

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller or processor, may issue a warning.

In the present case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to CP B.B.B. for the infringement of the aforementioned article.

Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to the COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the

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Interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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